3846

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE.

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other Purposes", approved October 6th, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, without public or other advertisement, at such time and place as to him, or to his authorized agent, may seem advisable, that certain property hereinafter described, now being held and administered by him as such Alien Property Custodian and heretofore upon requirement and demand, conveyed, transferred, assigned and delivered to him as the property of the following persons, namely: Marie Briede, Hugo Wilisch, and Hugo von Gahlen, which said persons he did, after investigation, determine to be enemies within the purview of said Act as amended, which property is described as follows, to wit:

1964 shares of the common stock and 375 shares of the preferred stock of the American Refractories Company, a corporation organized and existing under the laws of the State of West Virginia.

My reasons for the foregoing determination, order, rule and regulation are:

(a) That those who were the owners of said property at the time of seizure thereof by the Alien Property Custodian have consented to the sale of said property by the Alien Property Custodian at the price offered.

(b) That property such as that herein described cannot usually be sold to advantage at public sale after public or other advertisement.

(c) That unnecessary expense will be avoided in the further administration of said property by the Alien Property Custodian.

WARREN G HARDING

THE WHITE HOUSE,

May 16, 1923.

[No. 3846.]

GOVERNMENT PRINTING OFFICE